

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3413

By: Strom

AS INTRODUCED

An Act relating to public finance; amending 62 O.S. 2021, Section 34.36, as amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.36), which relates to annual estimate of funds needed by state agencies; requiring agencies to report on contractors; providing details to be reported on; directing agency to publicly post final consultant report; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 62 O.S. 2021, Section 34.36, as amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.36), is amended to read as follows:

Section 34.36. A. On the first day of October preceding each regular session of the Legislature, each state agency, including those created or established pursuant to constitutional provisions, shall report to the Director of the Office of Management and Enterprise Services and the Chair and Vice Chair of the Legislative Oversight Committee on State Budget Performance an itemized request

1 showing the amount needed for the ensuing fiscal year beginning with
2 the first day of July.

3 B. The forms which must be used in making these reports shall
4 be approved by the Director of the Office of Management and
5 Enterprise Services and the Legislative Oversight Committee on State
6 Budget Performance.

7 C. The forms shall be uniform, and shall clearly designate the
8 information to be given.

9 D. The information provided shall include, but not be limited
10 to:

11 1. A budget analysis of existing and proposed programs
12 utilizing performance-informed budgeting techniques. Such analysis
13 shall be included as a part of the estimate of funds needed;

14 2. A statement listing any other state, federal or local
15 agencies which administer a similar or cooperating program and an
16 outline of the interaction among such agencies;

17 3. A statement of the statutory authority for the missions and
18 quantified objectives of each program;

19 4. A description of the groups of people served by each program
20 in the agency;

21 5. A quantification of the need for the program;

22 6. A description of the tactics which are intended to
23 accomplish each objective;

1 7. A list of quantifiable program outcomes which measure the
2 efficiency and effectiveness of each program;

3 8. A ranking of these programs by priority;

4 9. Actual program expenditures for the current fiscal year and
5 prior fiscal years and the number of personnel required to
6 accomplish each program;

7 10. Revenues expected to be generated by each program, if any;

8 11. With respect to appropriated state agencies, a detailed
9 listing of all employees and resources dedicated to the provision of
10 financial services including but not limited to procurement,
11 payroll, accounts receivable and accounts payable. The provisions
12 of this paragraph shall not be applicable to the Oklahoma State
13 Regents for Higher Education or to any institutions within The
14 Oklahoma State System of Higher Education; ~~and~~

15 12. A certification that following the effective date of this
16 act and prior to July 1, 2011, no expenditure shall have been made
17 or funds encumbered for the purchase, lease, lease-purchase or
18 rental of any computers, software, telecom, information technology
19 hardware, firmware or information technology services, including
20 support services without the prior written approval of the State
21 Comptroller or his or her designee; and

22 13. A list of all contractors, contract amounts, and contract
23 status. If a contract is incomplete or in pending status, the
24 agency must provide a report on the estimated time of completion.

1 The agency must also list whether the contract is for services or to
2 augment staffing. The report should include any actions taken in
3 response to any recommendations of a consultant contracted with for
4 services. The agency must also publicly post the final consultant
5 report on the state's purchasing website so that it is linked to the
6 original contract.

7 E. These appropriated agencies shall make an itemized estimate
8 of needs for the ensuing fiscal year and the following two (2)
9 fiscal years and request for funds for the ensuing fiscal year and
10 an estimate of the revenues from all sources to be received by the
11 agency during the ensuing fiscal year and the following two (2)
12 fiscal years.

13 F. The Director of the Office of Management and Enterprise
14 Services shall submit to the Governor and the Legislative Oversight
15 Committee on State Budget Performance no later than the fifth day of
16 October a complete list of all spending agencies which have failed
17 to submit budgets by October 1.

18 G. The reports required by this section shall include an
19 itemized listing of outstanding capital lease debt and estimated
20 capital lease needs for the ensuing fiscal year and the following
21 two (2) fiscal years, and shall be provided on forms prescribed by
22 the Director of the Office of Management and Enterprise Services.

23 H. For the purposes of this section, "capital lease" means a
24 lease-purchase agreement which provides an option for the State of

1 Oklahoma or its agencies to purchase property, including personal
2 and real property, which is the subject thereof and/or a lease
3 agreement that provides an option for the State of Oklahoma or its
4 agencies to lease such property, which is the subject thereof, at a
5 nominal annual amount, after a period in which leased property is
6 rented at fair market value.

7 I. Not later than January 1, the Director of the Office of
8 Management and Enterprise Services shall publish a shared services
9 cost-performance assessment report documenting the amount of each
10 state agency's cost for providing shared services. The lowest
11 ranking state agencies shall enter into a contract with the Office
12 of Management and Enterprise Services for the provision of shared
13 financial services, provided that the Director of the Office of
14 Management and Enterprise Services determines that implementation of
15 such a contract would be feasible and documents that the contractual
16 agreement will result in cost savings or efficiencies to the state.
17 Contracts required by this subsection shall be entered into at the
18 start of the next fiscal year. When a state agency is contracted
19 with the Office of Management and Enterprise Services for the
20 provision of shared financial services, the agency may discontinue
21 using shared services when documentation showing that the agency can
22 provide the services at a lower cost to the state is provided to and
23 approved by the Director of the Office of Management and Enterprise
24 Services. As used in this subsection, "shared services" means

1 process, resource utilization or action as defined by administrative
2 rule. On a yearly basis the Director of the Office of Management
3 and Enterprise Services shall compile and publish a report
4 documenting the cost savings resulting from shared services
5 contracts. The provisions of this subsection shall not be
6 applicable to the Oklahoma State Regents for Higher Education or to
7 any institutions within The Oklahoma State System of Higher
8 Education.

9 SECTION 2. This act shall become effective November 1, 2026.

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11 60-2-14280 MJ 12/08/25
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